

SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY: CIVIL TERM, PART _____

ROCHELLE PRYCE,

Plaintiff,

-against-

CITY OF NEW YORK; NEW YORK CITY POLICE
DEPARTMENT (NYPD) POLICE OFFICER COLM G.
MOYLAN, SHIELD NO. 10033, CHRISTOPHER WALSH,
SHIELD NO. 23571, POLICE OFFICER WARREN
HUTCHINSON, SHIELD NO. 21648; POLICE OFFICERS
“JOHN DOE” 1-15

Defendants,

SUMMONS

Index No.

_____/2021

The Basis of Venue is:
Location of Incident

Plaintiff Designates
KINGS COUNTY as
the place of trial

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
April 13, 2021

Respectfully submitted,

/s/ JOSEPH Z. AMSEL, ESQ.
LAW OFFICES OF JOSEPH Z. AMSEL, PLLC
Attorney for Plaintiff
43 West 43rd Street, Suite 265
New York, NY 10036
Office: 888-558-7425
Fax: 212-437-9844
JZAmsel@AmselLaw.com

TO:

CITY OF NEW YORK: CORPORATION COUNSEL 100 Church Street, New York, NY 10007
POLICE OFFICER COLM G. MOYLAN, SHIELD NO. 10033,
POLICE OFFICER CHRISTOPHER WALSH, SHIELD NO. 23571
POLICE OFFICER WARREN HUTCHINSON, SHIELD NO. 21648

SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY: CIVIL TERM, PART _____

ROCHELLE PRYCE,

Plaintiff,

Verified Complaint

-against-

Index No. _____/2021

CITY OF NEW YORK; NEW YORK CITY POLICE
DEPARTMENT (NYPD) POLICE OFFICER COLM G.
MOYLAN, SHIELD NO. 10033, CHRISTOPHER WALSH,
SHIELD NO. 23571, POLICE OFFICER WARREN
HUTCHINSON, SHIELD NO. 21648; POLICE OFFICERS
“JOHN DOE” 1-15

Defendants,

The Basis of Venue is:
Location of Incident

Plaintiff Designates
KINGS COUNTY as the
place of trial

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of Defendants’ violation of Plaintiff, ROCHELLE PRYCE’s, rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, the rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution and the laws of the State of New York. Plaintiff was unlawfully arrested by the defendants. Plaintiff was deprived of her federal constitutional and state constitutional and common law rights when the individually named police officer defendants unlawfully confined plaintiff, caused the unjustifiable arrest of plaintiff and malicious prosecution and denial of a fair trial of the plaintiff. Defendants additionally used excessive force in violation of Plaintiff’s constitutional rights protected by the Eighth Amendment and the state tort laws.

PARTIES

2. Plaintiff ROCHELLE PRYCE is a resident of the State of New York and Kings County.

3. NYPD POLICE OFFICER COLM G. MOYLAN, SHIELD NO. 10033, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. NYPD POLICE OFFICER CHRISTOPHER WALSH, SHIELD NO. 23571, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

5. NYPD POLICE OFFICER WARREN HUTCHINSON, SHIELD NO. 21648, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

6. POLICE OFFICERS JOHN AND JANE DOE 1-15, is and was at all times relevant herein, officers, employees, and agents of the New York City Police Department.

7. The above-mentioned individual police officers are being sued in their individual capacity and official capacity.

8. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

9. At all times relevant hereto, defendant CITY OF NEW YORK, operated, maintained, managed, supervised and controlled the New York City Police Department ("NYPD") as part of and in conjunction with its municipal function.

10. Defendant CITY OF NEW YORK is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant CITY OF NEW YORK assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

11. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower courts of the State of New York.

12. Plaintiff in furtherance of her State causes of action filed a timely Notice of Claim upon the City of New York in compliance with Municipal Law Section 50 relative to her malicious prosecution and denial of fair trial claims.

13. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the City of New York has failed to pay or adjust the claim.

14. The City of New York held a 50(h) hearing examination of the Plaintiff on February 16, 2021.

STATEMENT OF FACTS

15. On July 24, 2019, at approximately 10:30 a.m., Plaintiff was lawfully present in her 2016 Nissan motor vehicle driving in the vicinity of 1000 Sutter Avenue (the 75th Precinct) in Kings County, New York. At a location across the street of 1000 Sutter Avenue, Plaintiff lawfully stopped her vehicle.

16. Plaintiff was approached without legal authority by Defendant Officer MOYLAN and her partner, Officer John Doe 1, who demanded that Plaintiff move her vehicle. Said Defendants then demanded that Plaintiff provide to them her license, registration and insurance information, which were all valid and exit her vehicle and submit to an unlawful arrest.

17. Said officer Defendants, as well as other officers, including Defendant Officers WALSH, HUTCHINSON, and Officers John and Jane Doe 2-15, who had all emerged from the nearby 75th Precinct located across the street from where Plaintiff's was unlawfully stopped and seized, then unlawfully demanded that Plaintiff exit her vehicle and, when she refused, they smashed her window of her vehicle thereby striking Plaintiff in the head, ear and about the body.

18. Thereafter, Defendant officers dragged Plaintiff from her car and threw her to the ground, pinned her there, and handcuffed her without legal justification.

19. At no time prior to being stopped by the Defendant officers or being unlawfully arrested and imprisoned by said Defendants did Plaintiff commit any crime, arrestable offense, or behave in a manner that gave the Defendant Officers a reasonable and objective basis to believe she had committed, was committing a crime, or was about to commit a crime.

20. At no point in time did Plaintiff resist arrest in any way.

21. The Defendant officers unlawfully searched Plaintiff and found no contraband or anything illegal on her.

22. Plaintiff has no prior criminal record.

23. After being unlawfully arrested, Plaintiff was taken by Defendants to the 75th Precinct, where Plaintiff was fingerprinted, photographed, and unlawfully detained in a holding cell.

24. As a result of ther arrest, Plaintiff was held in police custody for nearly three days.

25. The Defendant Officers falsely stated to the Kings County District Attorney's Office that Plaintiff had committed the crime of Assault on an officer in the second degree, despite that not being the case and said officers knowing that they lacked a legal and factual basis to allege that Plaintiff committed any crime.

26. Defendant Officers made false allegations to the Kings County District Attorney's Office, which resulted in Plaintiff being charged in Kings County Criminal Court with Assault in the Second Degree (Penal Law § 120.05[3]), a class D violent felony offense, and assorted misdemeanors and traffic infractions, including Assault in the Third Degree (Penal Law § 120.00[1]), Reckless Endangerment in the Second Degree (Penal Law § 120.20), Obstructing Governmental administration (Penal Law § 195.05), Resisting Arrest (Penal Law § 205.30), Attempted Assault in the Third Degree (Penal Law 110/120.00[1]), Menacing in the Third Degree (Penal Law § 120.15), and violations of Vehicle and Traffic Law §§ 1102 and 1110.

27. Thereafter, Plaintiff was arraigned on these charges in Kings County Criminal Court, at which point she was released on her own recognizance.

28. On October 3, 2019, Plaintiff testified before the Grand Jury to the facts set forth herein and the Grand Jury voted a no true bill on all charges, especially given that the body camera footage of the incident substantially contradicted the account of the Defendant officers.

29. On October 21, 2019, Plaintiff's case was dismissed and sealed.

30. As a result of the unlawful stop, question, frisk, search, false arrest, false imprisonment, unlawful seizure, and excessive force against Plaintiff by the individually named Defendants herein described, Plaintiff was caused to sustain serious physical injuries, including, *inter alia*, swelling, bruising, bleeding to various points of her body and a damaged eardrum, which caused various other physical injuries including, *inter alia*, vertigo and permanent loss of hearing.

31. As a result of the unlawful stop, question, frisk, search, false arrest, false imprisonment, unlawful seizure, and excessive force against Plaintiff by the individually named Defendants herein described, Plaintiff was caused to sustain serious psychological and emotional trauma.

32. As a result of the unlawful stop, question, frisk, search, false arrest, false imprisonment, unlawful seizure, and excessive force against Plaintiff by the individually named Defendants herein described, Plaintiff was caused to sustain serious physical injuries, Plaintiff was forced to retain the services of a qualified criminal defense attorney to defend against these false allegations.

33. Some of the police officer Defendants observed the violation of Plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable stop, question, frisk, search, seizure, false arrest, denial of fair trial, and excessive force used against the plaintiff.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment Rights

34. The plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 33 with the same force and effect as if more fully set forth at length herein.

35. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stopped, questioned, frisked, seized, unlawfully searched, falsely arrested, falsely imprisoned, subjected to denial of her due process rights in violation of plaintiff's right to be free of an unreasonable seizure and denial of due process under the Fourth and Fifth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION**False Arrest and False Imprisonment**

36. The plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 35 with the same force and effect as if more fully set forth at length herein.

37. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

38. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York and the United States Constitution.

39. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

40. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

41. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION**Unlawful Stop, Question, and Frisk**

42. The plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 41 with the same force and effect as if more fully set forth at length herein.

43. The illegal approach, pursuit, stop, questioning, and frisk employed by defendants herein terminated plaintiffs freedom of movement through means intentionally applied.

44. The conduct of defendants in stopping, frisking, and searching plaintiff were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the United States Constitution

45. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

46. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

47. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Search

48. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 47 with the same force and effect as if more fully set forth at length herein.

49. The illegal approach, pursuit, stop and search of plaintiff's person employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

50. Defendants lacked probable cause to search plaintiff.

51. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York and the United States Constitution.

52. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

53. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

54. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Violation of Plaintiff's Fourth And Fourteenth Amendment Rights Denial of Right to Fair Trial/Due Process

55. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 54 with the same force and effect as if more fully set forth at length herein.

56. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded ther false evidence to prosecutors in the Kings County District Attorney's Office.

57. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

58. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.

59. In withholding/creating false evidence against plaintiff ROCHELLE PRYCE, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to due process and fair trial under the New York State Constitution and under

the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

60. As a result of the foregoing, plaintiff ROCHELLE PRYCE sustained, *inter alia*, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings, and deprivation of her constitutional rights.

61. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

62. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

63. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

64. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 63 with the same force and effect as if more fully set forth at length herein.

65. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff, ROCHELLE PRYCE. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

66. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

67. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York.

68. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

69. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

70. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment Rights

71. The plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 70 with the same force and effect as if more fully set forth at length herein.

72. The use of excessive force by defendants by, amongst other things, pointing a gun at him, tackling him to the ground, and holding him down while punching and kicking him, constituted objectively unreasonable physical seizures of Plaintiff in violation of her rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

73. Defendants were at all times agents, servants, and employees acting within the scope of her employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

EIGHTH CAUSE OF ACTION

Assault

74. The plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 73 with the same force and effect as if more fully set forth at length herein.

75. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted Plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the plaintiff, that such acts caused apprehension of such contact in the Plaintiff.

76. As a direct and proximate result of such acts, defendants deprived Plaintiff of her rights under the laws of the State of New York.

77. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

78. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

79. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

NINTH CAUSE OF ACTION**Battery**

80. The plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 79 with the same force and effect as if more fully set forth at length herein.

81. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered Plaintiff, when they, in a hostile and/or offensive manner, tackled him to the ground and held him down while punching and kicking him, with the intention of causing harmful and/or offensive bodily contact to the Plaintiff and caused such battery.

82. As a direct and proximate result of such acts, defendants deprived Plaintiff of her rights under the laws of the State of New York.

83. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

84. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

85. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional, and psychological injuries.

TENTH CAUSE OF ACTION**Negligent Hiring, Retention, Training and Supervision**

86. The plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 85 with the same force and effect as if more fully set forth at length herein.

87. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train, and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

88. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

ELEVENTH CAUSE OF ACTION

Failure to Intervene

89. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 88 with the same force and effect as if more fully set forth at length herein.

90. The defendants that did not physically touch plaintiff, but were present when other officers violated plaintiffs Constitutional Rights had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

91. Defendants failed to intervene to prevent the unlawful conduct described herein.

92. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of her safety, and he was humiliated and subject to other physical constraints.

93. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York.

94. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

95. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

96. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

TWELFTH CAUSE OF ACTION

Malicious Prosecution

97. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 96 with the same force and effect as if more fully set forth at length herein.

98. The acts and conduct of the defendants constitute malicious prosecution under the United States Constitution.

99. Defendants commenced and continued a criminal proceeding against plaintiff.

100. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which they were prosecuted.

101. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned dates.

102. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

103. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the United States Constitution.

104. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

105. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

TIMELINESS OF PLAINTIFF'S CLAIMS

106. The applicable statute of limitations for Plaintiff's claims is 1 year and 90 days or 455 days. *See* CPLR § 217-A.

107. The applicable statute of applicable statute of limitations began running on July 25, 2019, the day after Plaintiffs initial arrest as described above. *See* General Construction Law § 20.

108. On March 20, 2020, Governor Andrew M. Cuomo issued Executive Order 202.8, which tolled the statute of limitations in this case. This toll remained in effect until November 4, 2020, when it was lifted by Executive Order 202.72.

109. From the earliest date that Plaintiff's claim began to run, July 25, 2019, until the toll went into effect on March 20, 2020, 240 days or 7 months and 26 days elapsed.

110. From November 4, 2020, when the toll was lifted, until the present day (April 13, 2021), an additional 159 days or 5 months and 8 days have elapsed.

111. In total, only 400 days of chargeable "untolled" time (or 13 months and 4 days) have elapsed of the allowable 455 days (or 1 year and 90 days) since the earliest date that Plaintiff's claims accrued.

112. Accordingly, Plaintiff's claims brought herein are timely.

JURY DEMAND

113. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff ROCHELLE PRYCE demands judgment against the Defendants on each cause of action in amounts to be determined upon the trial of the action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of the action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: April 13, 2021

New York, New York

/s/ JOSEPH Z. AMSEL, ESQ.
LAW OFFICES OF JOSEPH Z. AMSEL, PLLC
Attorney for Plaintiff
43 West 43rd Street, Suite 265
New York, NY 10036
Office: 888-558-7425
Fax: 212-437-9844
JZAmsel@AmselLaw.com

SUPREME COURT OF THE STATE OF NEW YORK
 KINGS COUNTY: CIVIL TERM, PART

ROCHELLE PRYCE,

Plaintiff,

-against-

CITY OF NEW YORK; NEW YORK CITY POLICE DEPARTMENT
 (NYPD) POLICE OFFICER COLM G. MOYLAN, SHIELD NO.
 10033, CHRISTOPHER WALSH, SHIELD NO. 23571, POLICE
 OFFICER WARREN HUTCHINSON, SHIELD NO. 21648; POLICE
 OFFICERS "JOHN DOE" 1-15

Defendants,

**Plaintiff's
 Verification of
 Complaint**

Index No.
 _____/2021

STATE OF NEW YORK)
)ss.:
 COUNTY OF Kings)

The undersigned Plaintiff, Rochelle Pryce, being duly sworn, says:

I have read the foregoing Complaint and know the contents thereof to be true to my knowledge
 except as to those matters stated therein upon information and belief, and as to those matters, I
 believe it to be true.

Date: April 13, 2021

DocuSigned by:

Rochelle Pryce

B596B4C1F5C74D9...

ROCHELL PRYCE

SWORN TO BEFORE ME
 THIS 13 DAY OF April, 2021


 NOTARY PUBLIC

